

March 15, 2025

Request for Comments: AI Action Plan

Attention: Faisal D'Souza, Office of Science and Technology Policy Networking and Information Technology Research and Development, National Coordination Office

Sent via email to: [REDACTED]

From: Peter Berkery on behalf of the Association of University Presses

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On behalf of the 163 institutional members of the Association of University Presses (AUPresses), 80% of whom are based in the United States, I write to offer our support for comments submitted by the Association of American Publishers in response to the OSTP's consultation.

Moreover, the UK government recently undertook a similar consultation on AI and Copyright. AUPresses submitted detailed responses in that consultation, which responses are applicable here; they can be found at: [UK_AI_Consultation_2025_AUPresses_official.pdf](#)

As a global community of mission-driven publishers, the Association asserts that current copyright laws protect the rights holder from the unauthorized use of their work and should be upheld. Legal changes should not be made that make it harder for individuals to protect their work yet easier for companies to obtain copyrighted content.

. Changes to current copyright law should not be made that make it harder for individuals to protect their work yet easier for companies to obtain copyrighted content, which exploits vulnerable rights holders who do not understand, are unaware, cannot opt-out, or make a mistake in trying to opt-out. If any changes to the law are to take place, then we believe copyright laws should be strengthened to protect rights holders further from the unauthorized acquisition and use of their work by AI companies.

The only approach we support is the existing approach where a company who wishes to use copyrighted material actively obtains consent from the rights holder. The onus must be on the companies to acquire consent and not the individual rights holder to secure additional protection beyond copyright, especially as individuals will have many works that require protection and will have differing comprehension and ability to opt-out successfully. Rights holders are currently engaging with AI companies to license their content and this is the correct approach.

As the recent Paris AI Summit concluded, "There will be no trusted AI without respect for intellectual property rights. There will be no ethical AI without the authorization of rights holders. There will be no sovereign AI without a fair business model."